

DPDP 2023

Digital Personal Data Protection Act, 2023

Applicable DPDP Acts

User Query : IIIT DELHI is using my data and selling it to third party organisation now it is available online

Job Id. : cca69395-7d6f-43f1-b62b-3ff9d870f80a/DPDP Act

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APPLICABLE SECTIONS

Section 3	Definitions
section 5	) - This section defines what constitutes personal data under the Act.
section 3	) - This section defines who a data fiduciary is, which includes any person or organization that processes personal data.
Section 5	Rights of Data Principals
section 1	)
section 2	)
Section 8	Processing of Personal Data
Section 11	Data Protection Impact Assessment
Section 12	Accountability and Penalty

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1

The Digital Personal Data Protection (DPDP) Act, 2023, governs the processing of personal data in India. In the given scenario, IIIT Delhi is using your personal data and selling it to a third-party organization, which has made the data available online.
- 2

Definition of Personal Data: According to **Section 3** (5) of the DPDP Act, 2023, personal data refers to any information about an individual who is identifiable by or in relation to such information. Your data, being used and sold by IIIT Delhi, falls under this definition.
- 3

Data Fiduciary: IIIT Delhi, by using and selling your personal data, acts as a data fiduciary as per **Section 3** (3) of the DPDP Act, 2023. A data fiduciary is an individual or organization that processes personal data.
- 4

Rights of Data Principals: As a data principal (the individual to whom the personal data relates), you have rights under **Section 5** of the DPDP Act, 2023. These include the right to access your personal data and the right to correction and erasure of your personal data.

- 5

Processing of Personal Data: **Section 8** of the DPDP Act, 2023, lays down the obligations of a data fiduciary while processing personal data. This includes obtaining consent from the data principal, providing notice, and ensuring that the data is processed in a fair, lawful, and transparent manner.
- 6

Data Protection Impact Assessment: If the processing of personal data by IIIT Delhi involves systematic and large-scale processing of personal data, or processing of sensitive personal data, it may be required to conduct a data protection impact assessment under **Section 11** of the DPDP Act, 2023.

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STRENGTHS & RIGHTS

- 1

Rights of Data Principals
The DPDP Act, 2023, provides you with rights over your personal data, such as the right to access and the right to correction and erasure.
- 2

Protections and Safeguards
The Act provides protections and safeguards against unauthorized use or disclosure of personal data.

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RISKS & OBLIGATIONS

- 1

Liabilities
IIIT Delhi, as a data fiduciary, may face liabilities and penalties under **Section 12** of the DPDP Act, 2023, for non-compliance with the provisions of the Act.
- 2

Compliance Burdens
Data fiduciaries must comply with various obligations under the Act, such as obtaining consent, providing notice, and conducting data protection impact assessments, which can be a significant compliance burden.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLAINTS AND GRIEVANCE REDRESSAL

1. In case of a grievance, you can file a complaint with the Data Protection Board established under the DPDP Act, 2023.

PENALTIES AND COMPLIANCE AUDITS

1. The Data Protection Board can impose penalties on data fiduciaries for non-compliance with the provisions of the Act. The Act also provides for periodic audits and assessments to ensure compliance.

2. In conclusion, IIIT Delhi's actions in using and selling your personal data may be in contravention of the provisions of the DPDP Act, 2023. You may have rights under the Act, including the right to access and correction of your personal data. IIIT Delhi, as a data fiduciary, must comply with the obligations under the Act, and may face liabilities and penalties for non-compliance.
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